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Judgment Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Criminal Appeal No. 1035 of 2023
(Fida Hussain and another Vs. The State and another)

JUDGMENT

Date of hearing:	28.02.2025
Appellants by:	Mr. James Joseph, Advocate and Jam Faisal Riaz, Advocate.
State by:	Mr. Waheed Rafique, Deputy District Public Prosecutor with Ashiq, Sub-Inspector.
Complainant by:	Rana Muhammad Akram and Mr. Muhammad Kashif Raza, Advocates.

Muhammad Jawad Zafar, J.: Through this criminal appeal No. 1035 of 2023, filed under Section 410 of the Code of Criminal Procedure 1898 (“**Code**” or “**Cr.P.C**”), the appellants, namely, Fida Hussain, son of Nazu Khan, and Muhammad Shan, son of Abdul Sattar, both residents of Mouza Murad Pur Shumali, Tehsil Jatoi, District Muzaffargarh (“**appellants**”), who were tried in crime report bearing FIR No. 767/2021 dated 23.10.2021 at or about 05:55 pm, for offences under Sections 302, 109 and 34 of the Pakistan Penal Code 1860 (“**PPC**”), registered with police station Jatoi, District Muzaffargrah (“**Crime Report**” or “**FIR**”) by the learned Additional Sessions Judge, Jatoi, District Muzaffargarh (“**Trial Court**”) on allegations of committing the *qatl-e-amd* of Haji Allah Bakhsh and Khan Muhammad. On conclusion of the trial, *vide* judgment dated 27.10.2023, both the appellants were convicted and sentenced, as *infra*:

- *Under Section 302(b) PPC, sentenced to life imprisonment and to pay Rs.10,00,000/- (ten Lac) each as compensation under section 544-A Cr.P.C to the legal heirs of Haji Allah Bakhsh and Khan Muhammad (both deceased) and the compensation, if not paid, shall be recoverable under section 544-A(2) C.P.C, as arrears of land revenue.*

Notably, benefit of Section 382-B of the Code was not extended to the appellants (hereinafter referred to as the “**impugned judgment**”). Pertinently, co-accused persons, namely, Chand, Osama, Muhammad Ramzan, Shakil, Ghulam Shabbir, Raheem Bakhsh, and Muhammad Waseem, nominated *via* supplementary statement dated 12.03.2022, after unexplained delay of about four months and eighteen days,

were saddled with allegations of, *inter alia*, conspiracy and supply of weapons,¹ were acquitted *vide* impugned judgment.

2. The synoptical facts and circumstances, as delineated in the Crime Report, relevant, yet shorn of unnecessary details, giving rise to this appeal, as are, or may be, necessary for the disposal of the same are that on 23.10.2021, at or about 5.00 pm, complainant Faiz Rasool, Abdul Rasheed Khan, Khan Muhammad, Allah Bakhsh, Safdar Ghafoor, along with others proceeded to the office of DSP *Jatoi* with regards to investigation of case FIR No.227/2021 registered with police station Shaher Sultan for providing defense of accused of said case FIR. After conclusion of investigation proceedings, they were returning home in the following composition: complainant Faiz Rasool and Abdul Rasheed were riding on the first motorcycle, whereas Khan Muhammad, Haji Allah Bakhsh and Safdar Ghafoor were riding on the second motorcycle. At or about 5 pm, when they reached near Masha Allah petrol station situated at Permit road, accused persons Muhammad Ramzan *alias* Dadu, Fida Hussain and Muhammad Waseem, who were purportedly chasing the complainant and others on a motorcycle being driven by accused Waseem, closed up on them. Once near, Fida Hussain fired a shot which missed Safdar Ghafoor and hit the windowpane of the petrol station, another fire was shot by Fida Hussain which hit Haji Allah Bakhsh on the right side of the chest. Then Ramzan *alias* Dadu (later on substituted by appellant Muhammad Shan) fired a shot which hit Khan Muhammad on the right side of the chest. Due to sustaining fire-shots on their persons, Khan Muhammad and Haji Allah Bakhsh fell to the ground from the motorcycle, as a consequence whereof, other riders of the other motorcycle, namely, complainant Faiz Rasool and Abdul Rasheed also fell and sustained injuries on their persons. In the meantime, the appellants, along with accused Waseem, succeeded in fleeing from the scene of the crime. Motive was attributed to Rahim Bakhsh, who, prior to the occurrence, cautioned the complainant party from attending the investigation, and on their participation, with common intention and while aiding and abetting, the appellants, along with Rahim Bakhsh and Waseem, committed the commission of *qatl-e-amd*. Consequently, the Crime Report got registered.

3. Appellant Fida Hussain was arrested on 05.11.2021 and on his disclosure and pointation, rifle 30 bore (P-24) and four live bullets (P-25/1-4) were recovered, the same were taken into possession *via* recovery memo (Exh.P-X). Appellant Muhammad Shan was subsequently arrested on 15.03.2022, and based on disclosure made by him, a pistol 30 bore (P-5) and three live bullets (P-6/1-3) were recovered on 27.03.2022, the same were taken into possession *via* recovery memo (Exh.P-E). After completion of the investigation, police report/challan under Section 173 of the Code was submitted before the learned Trial Court and formal

¹ Specific details of the roles of co-accused is rather unnecessary for present purpose(s) considering that no appeal against acquittal in terms of Section 417 of the Code has been filed by the State, nor by the complainant.

charge was framed against the appellants and other co-accused persons, to which they pleaded not guilty and claimed trial. To prove its case, prosecution produced as many as 13 witnesses. Ocular account was furnished by complainant Faiz Rasool (PW-3) and eyewitness Safdar Ghafoor (PW-6); Investigation of the case was conducted by Sajid Hussain (PW-11), Rana Umar Hayat (PW-12) and Muhammad Tariq (PW-13); Autopsies were conducted by Dr. Muhammad Saad Rasool (PW-9); site plan was prepared by draftsman *patwari* Nasir Masood (PW-4); and, *Moharrar* Abdul Aziz appeared and deposed as PW-5. Remaining of the prosecution witnesses (“**PWs**”) were more or less formal in nature. Prosecution, gave up witnesses, namely, Ghulam Yaseen, Abdul Rasheed, Rabnawaz, Ghulam Akbar, Naseer, and Haq Nawaz, and after tendering the following documents, *id est*: Histopathology Report bearing No. 0000739868 of Khan Muhammad (Exh.P-SS); Histopathology Report bearing No. 0000739837 of Allah Bakhsh (Exh.P-AB); Report of Audio visual Analysis bearing No. 0000729466 (Exh.P-UU); Reports of firearms and tool marks pertaining to Fida Hussain and Waseem bearing No. 0000744744 (Exh:P-VV), No. 00001029705 (Exh.P-WW), No. 00001025965 (Exh.P-XX), No. 0000888616 (Exh.P-YY); and, Forensic and Serology Analysis report No.000099136 (Exh.P-ZZ), closed its evidence. Thereafter, the appellants denied the charges levelled against them in their statements under Section 342 of the Code, but they did not opt to appear as their own witnesses in terms of Section 340(2) of the Code nor produce any defense evidence. On conclusion of trial, the learned Trial Court found the case against the appellants to have been proved, thus, convicted and sentenced them as detailed above.

4. Learned counsel for the appellants, amongst others contentions, averred that the name of the appellant namely Muhammad Shan was substituted after inordinate delay with deliberation *via* supplementary statement which has not intrinsic value in the eyes of law; dishonest improvements were made by the eye-witnesses, rendering their testimony unsafe to rely upon; rigor mortis could not have developed if time when crime report got registered is taken at face value; witnesses failed to explain their presence at the venue of occurrence; PFSA report lost its evidentiary value because guidelines laid down by the Honorable Supreme Court of Pakistan were not followed, thus could not be relied upon to convict the appellants; and co-accused persons of the appellants have already be acquitted. On the other hand, learned Deputy District Public Prosecutor assisted by learned counsel for the complainant vociferously defended the impugned judgment and argued that the discrepancies in ocular account are minor in nature; PFSA report is positive and supports substitution of appellant Muhammad Shan along with confession of accomplice, namely, co-accused Muhammad Ramzan, which is protected when Article 16 and 43 of the Qanun-e-Shahadat 1984 (“**QSO**”) are read together; witnesses had no motive to falsely implicate the appellants; and, role of co-accused persons was different from that of present appellants, therefore, their acquittal has

no bearing on the case of prosecution *qua* present appellants.

5. Heard, perused.

6. It is discernible from perusal of the material available on record that neither the occurrence took place in the mode and manner as stated by the purported eyewitnesses, nor did it take place at the time mentioned by them. Reason being that the time of occurrence in the Crime Report is 5:00 pm on 23.10.2021, whereas perusal of the post-mortem report, duly supported by the deposition of Dr. Muhammad Saad Rasool (PW-9), provides that the autopsy of Haji Allah Bakhsh deceased was conducted at 12:15 am on 24.10.2021, wherein the difference between injury and death is scribed as ‘*Within minutes*’ while the difference between death and post mortem is stated as between ‘*8 to 10 hours*’. It is evident from the above that the time of death as narrated in the Crime Report stands contradicted by the testimony of Dr. Muhammad Saad Rasool (PW-9) and post-mortem report. Alfred Swaine Taylor in “The Principles of Medical Jurisprudence” states ‘*Rigor Mortis commences 2 to 4 hours and reaches a peak in about 12 hours and starts to disappear after another 12 hours*’ (Emphasis supplied). Considering that the time between post-mortem examination and demise of the deceased is 7 hours and 15 minutes, if calculated from the Crime Report, it is mind-boggling how rigor mortis could fully develop within such a short span of time.² In other words, time of demise of the deceased is not in consonance with the time of occurrence as disclosed in the Crime Report. To this end, the inquest report was also examined, and the time when police found out about the occurrence in column No. 3 is conspicuously missing. Record is completely silent *qua* memos of identification of the deceased persons before conducting post-mortem examinations, as is evident from the testimony of the investigating officer and eyewitness Safdar Ghafoor (PW-6). Who escorted the then injured to the hospital is shrouded in mystery for the obvious reason that had said witnesses of ocular account been present at the time and place of occurrence, then said witnesses were supposed to have escorted the injured to the hospital³ and although to substantiate their presence the purported eyewitnesses produced bloodstained clothes before the investigating officer, however, no serologist and DNA report of PFSA is available to this end for matching their blood with that collected from the scene of the crime⁴. The vehicle, which was used to transport the injured and deceased to the hospital and mortuary

² See “Zafar Ali Abbasi and another v. Zafar Ali Abbasi and others” (2024 SCMR 1773); “Asad Rehmat v. The State and others” (2019 SCMR 1156); and, “Noor Ahmad v. The State and others” (2019 SCMR 1327).

³ See “Gulfam and another v. The State” (2017 SCMR 1189).

⁴ See “Mst. Sughra Begum and another v. Qaiser Pervez and others” (2015 SCMR 1142).

was never produced.⁵ On a related note, the delay of 7 hours and 15 minutes in conducting the post-mortem, which remained unexplained, points out towards a real possibility that time was consumed in order to procure and plant eyewitnesses for concocting a false story of prosecution before preparing police papers necessary for getting post-mortem examination conducted. Complainant Faiz Rasool (PW-3) could not justify his presence, rather he candidly admitted that he and all other witnesses reside about eighteen kilometers away from the place of occurrence, and the reason provided for their presence in the Crime Report finds no corroboration as neither the attendance sheet of the office of DSP Jatoi with regards to investigation of crime report bearing FIR No. 227/2021 registered with police station Shaher Sultan nor record of crime report bearing FIR No. 227/2021 were brought on record. All the said omissions are conspicuous by their absence and in absence of physical proof or the reason for the presence of the witnesses at the crime scene, their presence at the venue of occurrence at the time of commission of offence becomes highly doubtful and the same cannot be relied upon. Consequently, the purported eyewitnesses were, at best, chance witnesses.⁶ It is trite that a single doubt reasonably shaking the credibility of the presence of a witness at the venue of the crime suffices to discard the testimony of said witness in its entirety.⁷ Furthermore, Mr. Rabnawaz, in whose defense the complainant and witnesses purportedly went to office of DSP *Jatoi* and sustained injuries on the way back, was withheld by the prosecution, meaning thereby that he did not support the prosecution version. Illustration (g) of Article 129 of the Qanun-e-Shahadat 1984 (“QSO”) provides that if any best piece of evidence available with the parties is not produced by them, then it shall be presumed that *had that evidence been produced, the same would have gone against the party producing the same*.⁸

7. Witnesses of ocular account, namely, complainant Faiz Rasool (PW-3) and Safdar Ghafoor (PW-6), deposed in unison with the version put forth by prosecution in the Crime Report that only a single firearm injury was caused by appellant Fida Hussain on the person of the deceased Haji Allah Bakhsh, whereas their testimony is at odds and at a stark derogation with medical evidence in the shape of deposition of Dr. Muhammad Saad Rasool (PW-9) and post-mortem report, wherein two firearm injuries were observed on the person of the deceased

⁵ See “Zahid Rasool and another v. The State and another” (2022 YLR 1725 Lahore).

⁶ See “Muhammad Hassan and another v The State and others” (2024 SCMR 1427); and, “Mst. Sughra Begum and another v. Qaiser Pervez and others” (2015 SCMR 1142).

⁷ See “Mst. Rukhsana Begum and others v. Sajjad and others” (2017 SCMR 596); and, “Riaz Masih alias Mithoo v. The State” (1995 SCMR 1730).

⁸ See “Mst. Saima Noreen v. The State” (2024 SCMR 1310).

Haji Allah Bakhsh. Similarly, a single firearm injury was caused by co-accused Muhammad Ramzan (later substituted with the appellant Muhammad Shan) on the person of deceased Khan Muhammad per the Crime Report, whereas in the post-mortem report, two firearm wounds were observed by Dr. Muhammad Saad Rasool (PW-9). Notably, the time duration between injury and medical examination of complainant Faiz Rasool (PW-3) (who allegedly fell from Motor Cycle at the time of occurrence) was stated in the MLC as ‘6 to 7 hours’, which is in conflict with the time difference between injury and post-mortem examination and the MLC of the complainant. Had the deceased persons and complainant Faiz Rasool (PW-3) sustained injuries on their persons, the duration between injury and occurrence would have been the same as in the post-mortem report. When the aforementioned number of injuries and time lapse(s) are put in juxtaposition, it becomes rather obvious that there was no plausible explanation as to why the autopsy was conducted with the delay⁹ and there is an apparent conflict between medical and ocular accounts due to which no other opinion could be formed but to hold that the incident did not occur at the time as stated by the witnesses of the ocular account and the occurrence remained unwitnessed.¹⁰ In “Nasir Ali and others v. Sajjad Hussain and others” (PLD 2006 Supreme Court 560), it was held that:

‘The learned High Court had given finding of fact against the petitioner after proper appreciation of evidence with ocular testimony directly in conflict with medical evidence. It is a settled principle of law that in case of conflict between the ocular and medical evidence, then medical evidence is to be preferred. See Bagh Ali's case (1983 SCMR 1292) and Muhammad Aslam's case (1969 SCMR 462). It is pertinent to mention here that statement of eye-witnesses in respect of nature and seat of injuries could not connect the respondents as their statements are not in consonance with medical evidence and this finding was duly considered/noted by the High Court after reappraisal of eye-witnesses and the medical evidence in minutely’.

The medical and ocular conflict,¹¹ when culminated with the difference between the time of death and lack of justification *qua* presence at the scene of the alleged occurrence, lends credence to the view that the purported eyewitnesses were neither present when the deceased sustained injuries nor did they witness the occurrence and the narration of the FIR version, due to delayed post-mortem examinations,¹² is nothing but an afterthought, benefit whereof would go to the appellants. In “Muhammad Riaz v. Khurram Shehzad and another” (2024 SCMR 51), it was held that:

⁹ See Babar alias Jani v. The State” (2025 PCr.LJ 22 Lahore (DB)).

¹⁰ See “Shahzad Tanveer v. The State” (2012 SCMR 172).

¹¹ See “Muhammad Shafi alias Kuddoo v. The State and others” (2019 SCMR 1045); and, “Amin Ali and another v. The State” (2011 SCMR 323).

¹² See “Zafar v. The State and others” (2018 SCMR 326); “Muhammad Ilyas v. Muhammad Abid alias Billa and others” (2017 SCMR 54); and, “Shahbaz v. The State” (2016 SCMR 1763).

‘Thus, even in this respect the ocular account was contradicted by the medical evidence. It is a settled exposition of law that when the presence of eye-witnesses on the spot is doubtful then, in such situations, the ocular testimony should be excluded from consideration. The contradictions, if any, in the ocular evidence and medical evidence originates doubts and improbabilities in the prosecution case and, in such a situation, the benefit of doubt would obviously be extended to the accused’.

8. All the same, the recovery of weapons supposedly effected from the appellant does not, in any way, shape or form, lend support to the prosecution case as the weapon purportedly used for commission of offence was a pistol 30 bore and not a rifle. Beyond that, the recovery of rifles from the appellants is inconsequential as substantive evidence has failed in the present *lis*.¹³ In addition thereto, the said witnesses of the ocular account substituted one of the principal accused Muhammad Ramzan for the present appellant Muhammad Shan *vide* supplementary statement dated 12.03.2022, after an inordinate delay of four months and eighteen days. To circumvent this, recourse was taken to: (a) the fact that co-accused Muhammad Ramzan on 23.01.2022 joined investigation before PW-12 and while becoming a so-called accomplice, he confessed that appellant Fida Hussain and Muhammad Waseem were accompanied by appellant Muhammad Shan; and, (b) forensic report of CCTV footage acquired *via* USB from DVR on 08.01.2022 and the same was submitted in the office of PFSA on 11.01.2022 who after conducting analysis, *vide* PFSA report stated that CCTV footage was not tampered or forged. In view thereof, it was averred by the learned Deputy Prosecutor General that statement of Muhammad Ramzan before the Investigating Officer has evidentiary value, in the light of the Articles 16 and 43 of the Qanun-e-Shahadat 1984 (“QSO”) and that the plea of appellants *qua* dishonestly substituting the name of co-accused Muhammad Ramzan with appellant Muhammad Shan is misconceived. This contention fails to take into consideration due to the following:

- a. Firstly, it is an admitted fact that appellant Muhammad Shan was not nominated in the Crime Report. His nomination through an affidavit on 12.03.2022 is nothing but a supplementary statement, and such statements have always been considered to be afterthoughts carrying no evidentiary value;¹⁴
- b. Secondly, there is a stark difference between a statement of an accomplice and a confession of a co-accused. The statement of an accomplice has to be recorded under Section 164 of the Code for it to be used, and such an

¹³ See “Mian Sohail Ahmed v. The State” (2019 SCMR 956).

¹⁴ See “Imtiaz Latif and others v. The State through Prosecutor General, Punjab, Lahore and another” (2024 SCMR 1169); “Muhammad Kamran v. The State” (2021 SCMR 479); “Kashif Ali v. The Judge, Anti-Terrorism Court, Lahore” (PLD 2016 Supreme Court 951); and, “Akhtar Ali and others v. The State and others” (2024 YLR 2554 Balochistan (Sibi Bench)).

accomplice has to depose in terms of subsection (2) of Section 337 of the Code;¹⁵ a mere statement before the police simpliciter cannot be considered as such;¹⁶

- c. Thirdly, albeit under Article 16 of Qanun-e-Shahadat 1984 (“QSO”) an accomplice¹⁷ is a competent witness; however, illustration (b) to Article 129 provides a rider ‘*that an accomplice is unworthy of credit unless he is corroborated in material particulars*’. Since, the evidence of an approver being that of an accomplice is *prima facie* of a tainted character, it should be scrutinised with utmost care and accepted with caution and to this end, Rule 5 of Chapter 14, Volume-III, of the Rules and Orders of the Lahore High Court stipulates that ‘*As a matter of law, pure and simple, a conviction is not bad merely because it proceeds upon the uncorroborated testimony of an accomplice (vide *[Article 16 of the Qanun-e-Shahadat 1984]. But it has now become almost a universal rule ***[...] not to base a conviction on the testimony of an accomplice unless it is corroborated in material particulars. As to the amount of corroboration which is necessary, no hard and fast rule can be laid down. It will depend upon various factors, such as the nature of the crime, the nature of the approver’s evidence, the extent of his complicity, and so forth. But, as a rule, corroboration is considered necessary not only in respect of the general story of the approver, but in respect of facts establishing the prisoner’s identity and his participation in the crime.]*’,¹⁸ which is squarely lacking in this *lis*, as explained hereinbelow;
- d. Fourthly, if the argument is accepted and the statement is considered as a confession, then it would have no intrinsic evidentiary value for being an extra-judicial confession given to police because co-accused Muhammad Ramzan was never taken to any Magistrate for recording of his confession in terms of Section 164 of the Code;¹⁹
- e. Fifthly, the value of a statement made to police with regard to the niceties

¹⁵ See “Haider Hussain v. Government of Pakistan and others” (PLD 1991 Federal Shariat Court 139 (5-MB)).

¹⁶ See “Asif Ali Zardari v. The State through NAB, Islamabad” (2005 YLR 717 Lahore).

¹⁷ See “Haider Hussain v. Government of Pakistan and others” (PLD 1991 Federal Shariat Court 139 (5-MB)). It was held by the larger bench in this case that ‘*In Law of Evidence by Munir, page 1448 (Pakistan Edition), the word Accomplice is defined as ‘An Accomplice means a guilty associate or partner in crime, a person who is believed to have participated in the offence, or who, in some way or other, is connected with the offence in question or who makes admissions of facts showing that he had conscious (sic) hand in the offence. The definition of approver in Oxford Dictionary is ‘One who proves or offers to prove (another) guilty; hence, an informer. Now restricted to: One who confesses a felony and turns king’s (queen’s) or State’s evidence. One who tests. One who confirms or commends. In World Book Dictionary, approver is defined as “A person who approves or commends. A person who proves or offers to”. Therefore, it is necessary that approver, in the first instance should be accomplice and after granting pardon under Section 337 of the Code, he becomes approver and is to be examined as witness under subsection (2) of Section 337 of the Code before the learned Trial Court.*

¹⁸ See “Mian Muhammad Nawaz Sharif v. The State” (PLD 2009 Supreme Court 814); “Dr. Muhammad Bashir v. The State” (PLD 1971 Supreme Court 447); “Mst. Rabia Bibi v. Additional Sessions Judge and 3 others” (PLD 2020 Lahore 690); “The King v. Baskerville” [(1916) 2 KB 658]; and, “Mahadeo v. Emperor” (40 CWN 1164).

¹⁹ See “Rehmatullah and 2 others v. The State” (2024 SCMR 1782); and, “Gul Muhammad and another v. The State through Prosecutor-General Balochistan” (2021 SCMR 381).

of Articles 38, 39 and 40 of QSO has already been enunciated in exceptional detail by the honourable Supreme Court of Pakistan in “Akhtar v. Khwas Khan and another” (2024 SCMR 476) in the following words:

*‘the niceties of Article 38 of the Qanun-e-Shahadat Order, 1984 are quite lucid that no confession made to a police officer shall be proved as against a person accused of any offence, while Article 39 emphasizes that, subject to Article 40, no confession made by any person whilst he is in the custody of a police officer, unless it be made in the immediate presence of a Magistrate, shall be proved as against such person. Seemingly, a confession made before the police is not made admissible by dint of the aforesaid provisions of the Qanun-e-Shahadat Order, 1984 in order to preserve and safeguard the philosophy of safe administration of criminal justice and is also based on public policy’;*²⁰

- f. Sixthly, notwithstanding its lack of evidentiary value, the so-called confession does not support the prosecution case as it is trite that confession of a co-accused could not be used against another accused.²¹ It is clarified that Article 43 of QSO pertains to confession, not statements of co-accused or accomplice, and the Article itself provides that in clause (b) thereof, the confession of co-accused will be considered as a mere circumstantial piece of evidence against such other person. Meaning thereby that the same cannot be a stand-alone reason to convict someone; rather, it would require corroboration. Furthermore, it is settled by now that two corroborative pieces of evidence cannot corroborate each other, but corroboration must come from an independent source;²²
- g. Lastly, if all of these factors are taken out of consideration, even then the statement of co-accused Muhammad Ramzan merely states that appellant Muhammad Shan was with the others, and not for a moment states that the appellant committed the commission of *qatl-e-amd*. As a consequence thereof, this contention is repelled.

9. In the same vein, the averment of learned law officer that corroboration existed in the shape of CCTV footage and contention that the substitution in the name of the culprit was done after watching of CCTV footage, unfortunately, is misconstrued in light of the fact that Safdar Ghafoor (PW-6) admitted during cross-examination that the accused persons were his relatives and further stated that someone from his *baradari* disclosed the name of appellant Muhammad Shan to him. Based on the above, the question of misidentification

²⁰ Also see “Hayatullah v. The State” (2018 SCMR 2092); and, “Bashir Ahmed v. The State” (PLD 2008 Karachi 215).

²¹ See “Faqir Ullah v. Khalil-uz-Zanan and others” (1999 SCMR 2203).

²² See “Abdul Mateen v. Sahib Khan and others” (PLD 2006 Supreme Court 538).

does not arise and it does not appeal to reason that complainant Faiz Rasool (PW-3) would be oblivious to the name of his own relative and require someone, whose identity was not disclosed, to inform him the name of his relative, and that too after a considerable time lapse. The complainant Faiz Rasool (PW-3) himself produced five snaps (P-22/1-5) before the investigating officer, wherein the accused persons were boarded on a motorcycle on 10.11.2021. This means that complainant Faiz Rasool (PW-3) knew who the suspects were, however, he stayed mum without any reasonable justification until CCTV footage was acquired and forensic analysis of the same was conducted. Additionally, despite having the pictures of the assailants, he did not recognize his own relative in order to provide the investigating agency with the correct name. It makes no sense as it is not the case of the prosecution that the assailants were wearing mufflers to conceal their identity. In “Maqsood Alam and another v. The State and others” (2024 SCMR 156), the testimony of eyewitnesses was discarded based on the following observation:

‘There is no denial to this fact that the eye-witnesses are closely related to each other and even the relationship with the accused is not denied, which has been admitted by them. The PWs were acquainted with the accused being the co-villagers. In view of the fact that the parties were known to each other, non-mentioning the name of the co-accused Fawad Alam in the crime report shifted the burden on the shoulder of the prosecution to assign justifiable reasons for non-identification of Fawad Alam at the time of occurrence vis-a-vis the non-mentioning of his name in the crime report, especially when it is an admitted fact that it is not the case of prosecution that the accused committed the crime with muffled faces’.

At any rate, the CCTV footage is inadmissible in evidence because it was not brought on record in accordance with the law laid down by the Honourable Supreme Court of Pakistan in “Ishtiaq Ahmed Mirza and 2 others v. Federation of Pakistan and others” (PLD 2019 Supreme Court 675), wherein it was held at paragraph number 11 that:

‘11. The precedent cases mentioned above show that in the matter of proving an audio tape or video before a court of law the following requirements are insisted upon:

** The precedent cases mentioned above show that in the matter of proving an audio tape or video before a court of law the following requirements are insisted upon:*

** No audio tape or video can be relied upon by a court until the same is proved to be genuine and not tampered with or doctored.*

** A forensic report prepared by an analyst of the Punjab Forensic Science Agency in respect of an audio tape or video is per se admissible in evidence in view of the provisions of section 9(3) of the Punjab Forensic Science Agency Act, 2007.*

** Under Article 164 of the Qanun-e-Shahadat Order, 1984 it lies in the discretion of a court to allow any evidence becoming available through an audio tape or video to be produced.*

- * Even where a court allows an audio tape or video to be produced in evidence such audio tape or video has to be proved in accordance with the law of evidence.*
- * Accuracy of the recording must be proved and satisfactory evidence, direct or circumstantial, has to be produced so as to rule out any possibility of tampering with the record.*
- * An audio tape or video sought to be produced in evidence must be the actual record of the conversation as and when it was made or of the event as and when it took place.*
- * The person recording the conversation or event has to be produced.*
- * The person recording the conversation or event must produce the audio tape or video himself.*
- * The audio tape or video must be played in the court.*
- * An audio tape or video produced before a court as evidence ought to be clearly audible or viewable.*
- * The person recording the conversation or event must identify the voice of the person speaking or the person seen or the voice or person seen may be identified by any other person who recognizes such voice or person.*
- * Any other person present at the time of making of the conversation or taking place of the event may also testify in support of the conversation heard in the audio tape or the event shown in the video.*
- * The voices recorded or the persons shown must be properly identified.*
- * The evidence sought to be produced through an audio tape or video has to be relevant to the controversy and otherwise admissible.*
- * Safe custody of the audio tape or video after its preparation till production before the court must be proved.*
- * The transcript of the audio tape or video must have been prepared under independent supervision and control.*
- * The person recording an audio tape or video may be a person whose part of routine duties is recording of an audio tape or video and he should not be a person who has recorded the audio tape or video for the purpose of laying a trap to procure evidence.*
- * The source of an audio tape or video becoming available has to be disclosed.*
- * The date of acquiring the audio tape or video by the person producing it before the court ought to be disclosed by such person.*
- * An audio tape or video produced at a late stage of a judicial proceeding may be looked at with suspicion.*
- * A formal application has to be filed before the court by the person desiring an audio tape or video to be brought on the record of the case as evidence’.*

The learned Trial Court was under a bounden duty to check the admissibility of evidence, i.e., before it was allowed to come on record,²³ but miserably failed to do

²³ See “Hayatullah v. The State” (2018 SCMR 2092).

so. Benefit of omission of the learned Trial Court does not help the prosecution case as under the maxim of “Actus Curiae Neminem Gravabit”, the appellants cannot be prejudiced due to an act of court. It has also been observed that the Fertilizers Store from where the CCTV footage was allegedly collected is not cited in the scaled site plan (Exh.PH); the recovery memo containing CCTV footage in a USB (Exh.PA) is silent about the fact that it was taken from any Fertilizers Store; and neither any person from whom the footage was obtained made part of the investigation nor was said unknown person’s identity disclosed, meaning thereby that the CCTV footage cannot be considered into evidence. Besides the point, both Muhammad Ramzan (since acquitted) and appellant Muhammad Shan were tried by the learned Trial Court, had it been a case of misidentification simpliciter, some benefit thereof could have been afforded to the prosecution; however, in the present *lis*, based on the culmination of the aforementioned factors, it appears to be a case of dishonest improvement with *mala fide* intentions instead.

10. By the same token, the PFSA report obtained against the CCTV footage does not confirm or deny the identity of the person(s) in the video by way of conducting a photogrammetry test;²⁴ rather, it merely affirms that the video is not forged or tampered with. The submissions of the learned law officer could have been taken with a pinch of salt, had a photogrammetry test been conducted to identify the assailant, but even then due to the admission of Safdar Ghafoor (PW-6) and aberrant conduct of Faiz Rasool (PW-3), the same would have been futile to the prosecution case. In order to confirm the identity of culprit, it was mandatory for the Investigating Officer to refer the culprit or his picture, and video for photogrammetry test to the PFSA.

11. In the present case, existence of enmity between the complainant Faiz Rasool (PW-6) and the appellants is conspicuous and the complainant Faiz Rasool (PW-6) himself by virtue of the motive set up, in the Crime Report, reason to falsely implicate the appellants because if enmity persuades a person to commit a crime then it is also sufficient to falsely implicate some person from the other side. Motive is a double-edged sword, which cuts both sides/ways, and no evidence was brought on record by the prosecution to substantiate motive, thus, motive stands

²⁴ See “*Jackson v. E-Z-GO Div. of Textron, Inc.*”, 326 F. Supp. 3d 375, 436 (W.D. Ky. 2018) (citing “*Cantu v. United States*”, 2015 WL 4720580, at *7 (C.D. Cal. 2015)), wherein it was stated that ‘Photogrammetry is defined by taking measurements based on objects in photographs of an accident scene and does not require examination of the scene itself’.

disbelieved.²⁵

12. In view of the deliberations made hereinabove, it cannot be stated with any degree of certainty that the prosecution had succeeded in establishing its case against the appellant beyond any reasonable doubt; as adumbrate thereto, the prosecution has failed to prove its case through cogent, reliable and trustworthy evidence. To this end, it is trite that it is not necessary that there be multiple infirmities in the prosecution's case or several circumstances creating doubt. A single or slightest doubt, if found reasonable, in the prosecution case would be sufficient to entitle the appellants to its benefit, not as a matter of grace and concession but as a matter of right.²⁶

13. The upshot of the discussion made hereinabove is that the criminal appeal No. 1035 of 2023 is **accepted** by way of **setting aside** the impugned judgment wherein the appellants were convicted and sentenced, and the appellants are **acquitted** of the charge levelled against them under Section 302(b) of the PPC by extending the benefit of doubt. The appellants, being in custody, are ordered to be released forthwith if their custody is no longer required by jail authorities in any other case.

(MUHAMMAD JAWAD ZAFAR)
JUDGE

Gulfam/*

Approved for Reporting

JUDGE

²⁵ See “*Muhammad Riaz and others v. The State and others*” (2024 SCMR 1839); “*Khadim Hussain v. The State*” (2010 SCMR 1090); “*Allah Bakhsh v. The State*” (PLD 1978 Supreme Court 171); “*Noor Elahi v. Zafarul Haque*” (PLD 1976 Supreme Court 557); and, “*Imran and others v. The State and others*” (2018 PCr.LJ Note 111 Lahore).

²⁶ See “*The State v. Ahmed Omer Sheikh*” (2021 SCMR 873); “*Muhammad Mansha v. The State*” (2018 SCMR 772); “*Muhammad Akram v. The State*” (2009 SCMR 230); and, “*Tariq Pervaiz v. The State*” (1995 SCMR 1345).